BUREAU OF ROLLS AND LIBRARY
MAR 4 1919
DEPARTMENT OF STATE

ORDER BY FRANK L. POLK UNDER AUTHORITY
OF EXECUTIVE ORDER OF DECEMBER 3, 1918.

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AN ORDER CONCERNING THE SALE, TRANSFER, RELEASE AND SURRENDER OF CERTAIN RIGHTS OF H. E. SCHNIEWIND, A CO-PARTNERSHIP, AND OF THE COPARTNERS THEREOF RESIDENT IN GERMANY, DETERMINED TO BE ENEMIES NOT HOLDING A LICENSE OR LICENSES GRANTED BY THE PRESIDENT, WITHIN THE PURVIEW OF THE "TRADING WITH THE ENEMY ACT" AND THE AMENDMENTS THERETO.

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By virtue of the authority vested in the President by an Act of Congress entitled "An Act to define, regulate and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30th, 1918, and prior fiscal years on account of War expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of War expenses and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, which authority has been delegated to me by the Executive Order No. 3016 and signed by the President under the third day of December, 1918, I hereby, in the public interest make the following determination and order:

The Alien Property Custodian shall, without the formality of a public advertisement or public sale or auction

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sell, transfer, dispose of, release, surrender and quitclaim to Henry Schniewind, Jr., of the Borough of Manhattan, City of New York, and in connection therewith execute and deliver to him, the said Henry Schniewind, Jr., a proper instrument in writing duly transferring, disposing of, releasing, surrendering and quitclaiming to him, for such price or consideration as the Alien Property Custodian may deem adequate and proper, all the rights which H. E. Schniewind, a copartnership, of Elberfeld, Germany, has and also all the rights which Heinrich Schniewind, Sr., Willy Schniewind, Hans Schniewind and any other member or members of said copartnership, if any, resident in Germany, or any or either of them have, individually or as a member or members of said copartnership of H. E. Schniewind, under or by virtue of a certain option agreement between Henry Schniewind, Jr., of New York City, and said copartnership of H. E. Schniewind, dated March 20th, 1917, and under or by virtue of a certain prior option agreement modified by said option agreement of March 20th, 1917, or under or by virtue of either of said option agreements, to terminate a certain agreement between the said Henry Schniewind, Jr., and the said copartnership of H. E. Schniewind dated July 1st, 1915, whereby said Henry Schniewind, Jr., acquired from said copartnership all the common and voting capital stock of Susquehanna Silk Mills, a New York corporation, so that each of said option agreements and all rights of said copartnership of H. E. Schniewind and of Heinrich Schniewind, Sr., Willy Schniewind, Hans Schniewind and any other member or members of said copartnership, if any, resident in Germany, and of each of them, thereunder, both individually and as a member or members of said copartnership, may be completely

extinguished, terminated, cancelled and ended; and in order, in accordance with the purpose and intent of said Act of Congress and the amendments thereto, to guard against the said common or voting capital stock of Susquehanna Silk Mills passing into the ownership, possession or control of enemies or allies of enemies as defined by said statute, the Alien Property Custodian may require said stock to be settled in trust for such time and in such manner and under such circumstances as to the Alien Property Custodian may seem proper.

My reasons in the public interest for the foregoing determination and order are:

First: That the aforesaid rights are not the subject of public sale to the highest bidder for the reason, inter alia, (a) that no one save the enemies, or one or more of them, is in a position to perform the conditions necessary to the exercise of said option rights, and (b) that such rights have no market value to any person or persons other than the parties to the said instruments hereinbefore mentioned.

Second: That the only effective method whereby said option rights can be extinguished is by disposing of, transferring, releasing and surrendering said option rights to the persons who gave them and thereby cancelling the same.

Third: That the person against whom saidoption rights run, namely, Henry Schniewind, Jr., is willing to pay a substantial sum for the transfer, release, surrender and cancellation thereof.

Fourth: That an attempted sale at auction would be a useless formality and would involve unnecessary expense, delay and inconvenience which should be avoided.

Done in the District of Columbia, this, the 11th day of January in the year of our Lord one thousand nine hundred and nineteen and of the Independence of the United States of America, the one hundred and forty-third.

Frank L. Polk